

Vineet Kumar Varshney v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 December 2019 · Writ-C No. 41070 of 2019 · Writ-C No. 41070 of 2019 · **Writ disposed; EE to hear objections and pass a speaking final order; s.127 liberty; coercive recovery stayed for a limited period.**

HEADNOTE

A consumer who seeks certiorari against an undated assessment and a recovery citation for want of hearing is not granted a merits quash in writ. The High Court may direct him to appear before the Executive Engineer with objections, require a speaking final order, stay coercive recovery for a limited period, and leave any challenge to that final order to the statutory appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Vineet Kumar Varshney filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 18 November 2019 issued by the electricity department and an undated assessment order. He alleged that the respondents were taking coercive action against him without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not examine whether the assessment or citation was lawful.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to statutory appeal after speaking final assessment

HOLDING

Without quashing the undated assessment or the recovery citation, the Court directed the consumer to appear on 23 December 2019 before the Executive Engineer with objections and evidence; directed that officer to pass a speaking and reasoned final order within four weeks of considering those objections; stayed coercive action for seven weeks or until disposal of the objection, whichever was earlier, subject to appearance and filing of objections (failing which the stay would lapse and the citation would revive); and held that if the consumer was aggrieved by that final order it would be open to file an appeal under Section 127 of the Electricity Act, 2003. ¶ 1-2

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ was disposed without a merits grant or refusal on the assessment; any challenge to the Executive Engineer's forthcoming speaking final order was left to the Section 127 appeal. ¶ 1-2

final-assessment-order-relegates-assessee-to-section-127-appeal Section 127 was treated as the remedy against the speaking final order the Executive Engineer was directed to pass after hearing, not as a substitute for first obtaining that final assessment. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE UNDATED ASSESSMENT AND THE RECOVERY CITATION DATED 18.11.2019
The Court did not examine the assessment or citation on merits. ¶ 1-2

NOT DECIDED — WHETHER OPPORTUNITY OF HEARING HAD BEEN DENIED OR THE U.P. ELECTRICITY SUPPLY CODE, 2005 BREACHED
Those allegations were the occasion for directing a hearing, not findings. ¶ 1-2

